

State of California

GOVERNMENT CODE

Section 11549.63

11549.63. The Legislature finds and declares all of the following:

(a) The Legislature recognizes the tremendous potential of artificial intelligence (AI) to improve the lives of its citizens and the functioning of government. However, the Legislature also recognizes that the use of AI must be guided by principles of fairness, transparency, privacy, and accountability to ensure that the rights and opportunities of all Californians are protected in the age of artificial intelligence.

(b) The Legislature further recognizes that generative artificial intelligence (GenAI) enables significant, beneficial uses through its unique capabilities, but GenAI raises novel risks compared to conventional AI across critical areas, including democratic and legal processes, biases and equity, public health and safety, and the economy, and requires measures to address insufficiently guarded governmental systems and unintended or emergent harmful effects from this technology. Additionally, because humans have explicit and implicit biases built into our society, GenAI has the capacity to amplify these biases as it learns from input data. Therefore, it is imperative to consider the implications on Californians of, among other categories, different regions, income, races, ethnicities, gender, ages, religions, abilities, and sexual orientation for all GenAI inputs, outputs, and products for both prioritizing implementations that may promote equity and guarding against bias and other negative impacts.

(c) No individual or group should be discriminated against on the basis of race, gender, age, religion, sexual orientation, or any other protected characteristic in the design, development, deployment, or use of AI systems. The unprecedented speed of innovation and deployment of GenAI technologies necessitates proactive guardrails to protect against potential risks or malicious uses, including, but not limited to, bioterrorism, cyberattacks, disinformation, deception, violation of privacy, and discrimination or bias.

(d) The Legislature affirms the importance of transparency in the use of GenAI systems. The public has the right to know when they are interacting with GenAI being used by the state and to have an accessible identification of that interaction.

(e) The Legislature recognizes that the use of GenAI systems must be consistent with the protection of privacy and civil liberties and must be guided by a commitment to equity and social justice. It is the intent of the Legislature in enacting this legislation that all GenAI systems be designed and deployed in a manner that is consistent with state and federal laws and regulations regarding privacy and civil liberties and minimizes bias and promotes equitable outcomes for all Californians.

(f) This act, in addition to the 2022 White House Blueprint for an AI Bill of Rights, executive guidance from the governor, statutory or regulatory requirements, and

evolving best practices should guide the decisionmaking of state agencies, departments, and subdivisions in the review, adoption, management, governance, and regulations of automated decisionmaking technologies.

(g) Public-private cross-sectional partnerships should be established to train students to meet the GenAI workforce development needs of the state, including providing instruction on AI and related ethical, privacy, and security considerations while advancing research on best practices. Further, there is the need for the state to recruit, retain, and train GenAI professionals in certain state jobs, and agencies should collaborate to facilitate a pipeline and infrastructure to accomplish that goal.

(h) State agencies, departments, and boards should utilize their authority to protect consumers, patients, passengers, and students from fraud, discrimination, and threats to privacy and to address other risks that may arise from the use of GenAI, including risks to financial stability. State agencies, departments, and boards should consider rulemaking and emphasize or clarify if existing regulations and guidance apply to GenAI or other automated decisionmaking systems.

(Added by Stats. 2024, Ch. 928, Sec. 2. (SB 896) Effective January 1, 2025.)